

Court No. - 21

Case :- WRIT - C No. - 14926 of 2023

Petitioner :- Rajesh Yadav

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Ravindra Kumar

Counsel for Respondent :- Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Shri Alok Mishra, learned counsel for the respondent-Electricity Department prays for and is granted time to obtain instructions.

Put up as fresh on 09.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023

Rama Kant

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The petitioner has challenged the recovery notice dated 13.12.2022 issued by respondent No. 3 in a case of alleged theft of electricity by the petitioner.

Sri Alok Mishra, learned counsel for respondent Electricity Department on instructions states that the respondents have decided to withdraw the impugned recovery notice and to pass a fresh order after affording opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 9.5.2023

Ruhi